

Line 5

Case Name: *Swaminathan Nandakumar, et al. v. David Plagens, et al.*

Case No.: 22CV397444

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Cross-Complainants David Plagens and Lisa Plagens (“Cross-Complainants” or “Plagens Cross-Complainants” or “Plagens”) move to enforce and clarify the Court’s May 22, 2026 Protective Order and related discovery Order regarding Cross-Defendants Swaminathan Nandakumar and Rekha Nandakumar (“Cross-Defendants” or “Nandakumar Cross-Defendants” or “Nandakumars”) and for sanctions. Notice of Motion (the “Motion”) at 1:19-27. (filed: July 13, 2026).

The Motion came on for hearing on September 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Facts

After reviewing all the moving and opposition papers, including their supporting declarations and their voluminous exhibits, and the record, the Court finds the following facts.

On May 13, 2026, the Court granted the Plagens Cross-Complainants’ motions to compel and ordered the Nandakumar Cross-Defendants to produce all responsive, non-privileged documents at or before their depositions scheduled for May 26 and May 29, 2026.

On May 19, 2026, the Nandakumar Cross-Defendants advised the Plagens Cross-Complainants that the security camera footage to be produced under the May 13, 2026 order was password-protected with special duplication requirements. So the Nandakumar Cross-Defendants offered two alternatives for production:

(1) a neutral e-discovery vendor would process the footage and produce digital copies to both sides within six to ten business days, with a short extension of the production deadline and a protective order in place; or

(2) the Nandakumars would immediately make the hardware itself available for the Plagens to download and process at their own expense, with pickup that week and return by June 1, 2026, again subject to a protective order.

Decl. of Austin L. Houvener in Support of Opposition (“Houvener Decl.”) at ¶ 3 & Ex. A

thereto.

The Plagens Cross-Complainants rejected the vendor option and demanded production of the raw materials by the deposition date. Their counsel responded that the Nandakumars' objections had been waived, that all objections have been waived, "including any ability to impose conditions on production," and that the processing timeline was a "self-created delay" that would not extend the deadline. They demanded production of the raw materials by the deposition date. *Id.* at ¶ 4.

On May 21, 2026, the Nandakumar Cross-Defendants filed an ex parte application for a discovery Protective Order governing the inspection, copying, dissemination, retention, and destruction of the residential security camera footage. *Id.* at ¶ 5.

On May 22, 2026, the Court granted that ex parte application and issued its Protective Order regarding this discovery. (the "Order Granting Ex Parte Application for Protective Order (filed: May 22, 2026) (hereinafter, the "May 22, 2026 Protective Order").

It is precisely this May 22, 2026 Protective Order regarding discovery of the residential security camera footage that this Motion seeks to "enforce and clarify." Motion at 1:19-23.

The May 22, 2026 Protective Order regarding discovery states, *inter alia*:

"Defendants may retrieve, inspect, and copy the hard drives and DVR equipment beginning at 10:00 a.m. on Friday, May 22, 2026 at the offices of Rossi, Hamerslough, Reischl & Chuck, 1960 The Alameda, Suite 200, San Jose, California 95126."

May 22, 2026 Protective Order at ¶ 4. At the end that paragraph 4, the Court struck the language "at Defendants' expense" that had been proposed by the Nandakumar Cross-Defendants. Because the Court struck that language in the Protective Order on the issue of which party would bear the cost, this issue is *not decided by* the May 22, 2026 Protective Order but rather is governed by the relevant statutory provision of the Code of Civil Procedure. *See* C.C.P. § 2031.280(e), discussed below.

The Court also replace the return date of the produced materials that had been proposed by the Nandakumar Cross-Defendants of "June 1, 2026," with a requirement that all hard drives and DVR equipment be returned "within 60 days after the final resolution of this litigation." May 22, 2026 Protective Order at ¶ 5.

The Nandakumar Cross-Defendants immediately complied with May 22, 2026 Protective Order by later that same day that the Protective Order was issued, on May 22, 2026, made the equipment including the DVR unit and hard drives available to the Plagens Cross-Complainants at the designated location for retrieval—the Ross law firm—and by providing comprehensive access instructions and detailed list of materials produced. Houvener Decl. at ¶ 7; Declaration of Missy M. Cornejo in Support of Opposition ("Cornejo Decl.") at ¶¶ 3-8 & Exhibits A, B, and C thereto.

Indeed, the Plagens' counsel (Thompson Hine LLP) confirmed receipt of comprehensive access instructions and detailed list of materials produced, thanked the Rossi Firm (then Nandakumar Cross-Defendants' counsel) for remaining open until 5:00 p.m. on a holiday weekend, and sent a representative from Thompson Hine LLP, who executed the written receipt and chain-of-custody form and took possession of the materials on May 22-23, 2026. Cornejo Decl. at ¶¶8-10.

The equipment remained in the custody of Cross-Complainants' then-counsel Thompson Hine LLP from May 23 through June 25, 2026. *Id.* at ¶ 10. The Plagens' own chain-of-custody exhibit reflects that on May 23, 2026 the equipment was in the hands of Thompson Hine LLP, and that it remained in that firm's custody until June 25, 2026, when Thompson Hine shipped it by FedEx to the Rossi Firm. *Id.*

Thompson Hine shipped the materials back to the Rossi Firm on June 25, 2026 after Thompson Hine withdrew as counsel for the Plagens Cross-Complainants. Houvener Decl. at ¶ 9.

On June 30, 2026, the Plagens wrote to the Rossi firm regarding getting access to the materials, including their position regarding costs incurred to date. Houvener Decl. at ¶ 10 and Ex. D thereto.

The Nandakumar's lawyer Houvener promptly replied the next day on July 1, 2026, stating that the parties remain bound by the May 22, 2026 Protective Order, that the Plagens can pick up the materials from the Rossi firm, and asked the Plagens to "contact [Houvener] to arrange a mutually convenient date and time for pickup." Houvener Decl. at ¶ 11 & Ex. E thereto. Among other things, the Nandakumar Cross-Defendants proposed a return date for the materials of August 21, 2026, and reiterated their position that the Plagens "bear their own costs of accessing and extracting the data"—an issue (as explained above) that the Court did *not* decide in the May 22, 2026 Protective Order but rather is governed by the relevant statutory provision of the Code of Civil Procedure. *See* C.C.P. § 2031.280(e), discussed below.

That same day, on July 1, 2026, the Plagens Cross-Complainants replied that they "do not agree to Plaintiffs/Cross-Defendants' proposed return deadline, cost position, access-materials position, or any condition that is not contained in the Court's May 22, 2026 Order." Houvener Decl. at ¶ 12 and Ex. F thereto.

Next, on July 13, 2026, Cross-Complainants filed this Motion to "enforce and clarify" the May 22, 2026 Protective Order. Motion at 1:19-22

II. Analysis of the Motion to "Enforce and Clarify" the May 22, 2026 Protective Order

A. Paragraph 4 of the May 22, 2026 Protective Order Is Time- and-Place-Specific Authorization That Has Been Performed.

Paragraph 4 of the May 22, 2026 Protective Order, by its plain text, authorizes a

specific retrieval event on a specific date at a specific address. It states that the Plagens “may retrieve, inspect, and copy the hard drives and DVR equipment beginning at 10:00 a.m. on Friday, May 22, 2026 at the offices of Rossi, Hamerslough, Reischl & Chuck, 1960 The Alameda, Suite 200, San Jose, California 95126.” May 22, 2026 Protective Order at ¶ 4. A fatal flaw with the Plagens’ Motion to “enforce and clarify” is that all the requirements of Paragraph 4, as the Court has recounted in great detail above, were performed. Houvener Decl. at ¶ 7; “Cornejo Decl.” at ¶¶ 3-10 & Exhibits A, B, and C thereto. Accordingly, As the Court finds that the Nandakumar Cross-Defendants complied with Paragraph 4 to the letter, there is nothing for the Court to “enforce” or “clarify” now.

Nor does Paragraph 2 of the Protective Order help the Plagens’ position here. Paragraph 2 states: “ The confidential material may be used solely for purposes of this litigation and may not be disclosed to any person or entity except: (a) the parties; (b) counsel of record and their staff; (c) retained experts and consultants; and (d) court personnel.” May 22, 2026 Protective Order at ¶ 2. That permits disclosure to the parties, *not* ongoing entitlement to physical possession. Paragraph 2 is a disclosure restriction—it lists the persons to whom confidential material *may* be shown. It establishes a ceiling on dissemination, *not* a grant of possessory rights. It cannot be read to convert a one-day inspection authorization for May 22, 2026 into an unlimited right to repossession on demand.

Moreover, the Nandakumar Cross-Defendants have not refused further access to the Plagens at all. They offered it on July 1, 2026, identifying the current custodian and location, and inviting Cross-Complainants to arrange pickup. Houvener Decl. at ¶ 11 & Ex. E thereto. The parties’ dispute concerns the terms under which that access will occur—specifically, whether a return date, cost allocation, and non-alteration obligations should apply. But dispute is the subject of Cross-Defendants’ pending noticed motion to *modify* and is not properly resolved through this Motion to *enforce and clarify*.

B. Cross-Defendants Complied with the May 22, 2026 Protective Order

While the Plagens Cross-Complainants argue that the Cross-Defendants withheld access materials necessary to use the production, that argument is belied by the record. On May 22, 2026, Cross-Defendants provided passwords, boot procedures, file format information, user guides with export instructions, and free viewer software. Every category of ‘access material’ the Motion says was withheld was supplied on May 21 and May 22, 2026: including, ‘software/viewer information’ (the free Amcrest viewer, by hyperlink, plus written confirmation that no other software exists); ‘credentials’ and ‘passwords’ (the administrator log-in symbol and the means of reaching the Admin menu); ‘export instructions’ (page 87 of the User Guide); ‘file index’ and ‘camera/feed identifiers, date/time ranges’ (the drive-by-drive inventory and the unit’s built-in search by month, day, and year); and ‘access protocol’ (the boot procedure, single-drive constraint, and hardware needed to install the drives). Cornejo Decl. at ¶¶ 3-7 and Exhibits A, B, and C thereto.

After reviewing all the papers and the record, the Court finds that the Nandakumar Cross-Defendants produced the equipment on the date and at the location specified in the Protective Order, together with all materials in their possession necessary to access the footage. Hence, as Cross-Defendants complied with the plain terms of May 22, 2026 Protective Order, there is nothing for the Court to “enforce and clarify” now.

C. Cost-Shifting Principles Support Denial of this Motion.

At bottom, what the Plagens Cross-Complainants ask for is an Order that Cross-Defendants must bear the cost of rendering the approximately 64 terabytes of data into searchable, indexed, exportable form. Reply at 7:23-8:19; Motion, Requested Relief at ¶ 12 (citing, *inter alia*) Declaration of David Plagens in Support of Motion at ¶ 31.

But California law places that burden on the demanding party—here, the Plagens Cross-Complainants. Code of Civil Procedure Section 2031.280 states: “If necessary, the responding party *at the reasonable expense of the demanding party* shall, through detection devices, translate any data compilations included in the demand into reasonably usable form.” C.C.P. § 2031.280(e) (emphasis added). At well put by the Sixth District Court of Appeal: “We need not engage in protracted statutory analysis because its plain language clearly states that if translation is necessary, the responding party must do it at the demanding party’s reasonable expense.” *Toshiba America Elec. Components, Inc. v. Superior Court* (2004) 124 Cal.App.4th 762, 769.

Here, Cross-Defendants offered, before production, to have a neutral vendor process the footage into usable form with the cost shared or allocated to Cross-Complainants. Cross-Complainants rejected that option and demanded the raw data immediately. Having obtained precisely the production they insisted upon, Cross-Complainants cannot now declare it noncompliant and charge Cross-Defendants for the alternative they refused.

Cross-Complainants suggest that the Court’s striking of the words “at Defendants’ expense” at the end of Paragraph 4 of the Protective Order affirmatively shifted these costs to the Nandakumar Cross-Defendants. Reply at 8:12-19. That argument fails. Striking a clause that would have expressly imposed costs on the Plagens Cross-Complainants does not impose them on Nandakumar Cross-Defendants. Striking that language *in* Protective Order means that this issue is not resolved *by* the Protective Order. Which leaves in place the standard statutory provision on who pays this expense: “the demanding party”—here, the Plagens. C.C.P. § 2031.280(e), *supra*.

D. Sanctions Are Not Warranted

Code of Civil Procedure Section 2023.030(a) authorizes monetary sanctions for misuse of the discovery process. C.C.P. 2023.030(a). Disobeying a court order to provide discovery constitutes misuse. C.C.P. § 2023.010.

Here, as the Court has found above that Cross-Defendants complied with the January 22, 2026 Protective Order, they did not commit any misuse of the discovery

process. They produced the equipment on the ordered date, supplied every access material in their possession, offered a vendor-prepared alternative that was refused, identified the current custodian on request, offered further access, invited counter-proposals for an amended order, and when the parties could not agree, filed a noticed motion rather than acting unilaterally. This is not discovery misuse.

Accordingly, as the Court finds that Cross-Defendants did not misuse the discovery process here, Cross-Complainants request for monetary sanctions under Section 2023.030(a) is **DENIED**.

E. This “Clarification” Request Seeks Modification of the Protective Order Without Proper Notice or Good Cause

Cross-Complainants request that the Court clarify the Protective Order to limit confidentiality protection to footage actually depicting minor children or genuinely private residential activities and to authorize disclosure to governmental agencies and law enforcement whenever Cross-Complainants deem it reasonably necessary. Motion, Requested Relief at ¶¶ 10-11.

But those requests do not *clarify* the May 22, 2026 Protective Order, they *rewrite* it. “ Paragraph 1 of the Order designates ‘[a]ll security camera footage, DVR recordings, hard drive contents, copies, extracts, screenshots, and derivative materials produced by Plaintiffs’ as CONFIDENTIAL.” May 22, 2026 Protective Order at ¶ 1. It contains no content-based carve-out and is not limited to footage depicting minors. Here, Cross-Complainants seek to narrow that designation and create a broad exception for third-party disclosure. That is a modification requiring a showing of good cause. Cross-Complainants offer no such showing and provide no specific justification for the modifications they seek now. Request denied.

The request for reciprocal protection of Cross-Complainants’ own materials likewise fails procedurally. Cross-Complainants have never moved for a protective order as to their own productions. Relief cannot be obtained by asking the Court to extend to an order entered on another party’s application for a protective order regarding other materials.

III. Conclusion & Order

The Plagens Cross-Complainants received exactly what they demanded: immediate access to the raw data with all access materials necessary to use it. They kept the equipment for more than a month. They now seek a second production in a different format at the Nandakumar Cross-Defendants’ expense, plus sanctions. The Plagens do not seek to “enforce and clarify” the Protective Order, they seek to rewrite it.

The May 22, 2026 Protective Order required Cross-Defendants to make the hard drives and DVR equipment available for retrieval, inspection, and copying at a specified time and place. Cross-Defendants did that; they complied. The Protective Order did not require Cross-Defendants to provide a processed, searchable copy at their expense, allow

indefinite retention without a return date, or accept responsibility for damage occurring while the equipment was in Cross-Complainants' counsel's custody. Cross-Complainants seek relief in this Motion that is *beyond* what the Protective Order requires.

Accordingly, the Motion of Cross-Complainants David Plagens and Lisa Plagens move to enforce and clarify the Court's May 22, 2026 Protective Order is **DENIED** in all respects.

SO ORDERED.

Date: September 4, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 6

Case Name: *Yi Wei v. Tina Tipping Hsu*

Case No.: 24CV451814

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Tina Tipping Hsu (“Defendant”) moves under Code of Civil Procedure Section 473(d) for the Court to correct a clerical error in its Order filed January 22, 2026. Notice of Motion (the “Motion”) at 2:4-5 (filed: March 2, 2026). The Motion is made on the ground that the January 22, 2026 Order reflected the incorrect amount of attorneys’ fees awarded during oral argument of the October 1, 2025 hearing, which transcript is attached to the Declaration of Marisella T. Prada (“Prada Declaration”) in Support of the Motion. *Id.* at 1:6-9.

The Motion came on for hearing on September 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background Facts & Procedural Posture

The general background facts and procedural history of this case as set forth in great detail in the Court’s January 22, 2026 Order are incorporated by reference, confirmed in full now, and will not be repeated here. *See* Order 2:25-5:25 (“Factual and Procedural Background”) (filed: Jan. 22, 2026).

That January 22, 2026 Order, which Defendant Hsu now moves the Court to correct a clerical mistake in regarding the amounts of attorneys’ fees awarded, memorialized rulings on five separate Motions *decided at the October 1, 2025 hearing* in Department 16 by:

1. Denying Plaintiff’s Motion for Reconsideration of Order Granting Defendant’s Special Motion to Strike (C.C.P. § 435.16);
2. Granting Defendant’s Motion for Statutory Attorneys’ Fees;
3. Sustaining Defendant’s Demurrer to Plaintiff’s First Amended Complaint;
4. Granting Defendant’s Motion to Expunge *Lis Pendens*; and
5. Advancing for hearing Defendant’s Motion for Sanctions *and* Denying that Motion.

Order at 1:13-21, 6:1-10:28 (filed: Jan. 22, 2026).